

26NNCV02975 26NNCV02975

County: los-angeles

Division: Civil Law and Motion

Department: D

Hearing date: 2026-08-28

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Case Number: 26NNCV02975 Hearing Date: August 28, 2026 Dept: D

TENTATIVE RULING

Calendar: 1

Date: August 28, 2026

Case No: 26NNCV02975 Trial Date: Not yet set

Case Name: Auxilior Capital Partners, Inc. v. Nationwide Premium Inc., et al.

APPLICATIONS FOR WRIT OF POSSESSION

[CCP § 512.010]

Moving Party: Plaintiff, Auxilior Capital Partners, Inc. / Plaintiff, Auxilior Capital Partners, Inc.

Responding Party: Defendant, Hakob Sarkhosyan aka Hakob Sarkhoshyan / Defendant, Nationwide Premium, Inc.
[Unopposed]

RELIEF REQUESTED:

Order for writ of possession for a 2025 BOBCAT S590 Skid Steer Loader, Serial # B4RF13744.

CAUSES OF ACTION: from Complaint

1) Breach of Written Agreement

2) Breach of Guaranty

3) Claim and Delivery

4) Conversion

5) Account Stated

SUMMARY OF FACTS:

The Complaint alleges that on June 23, 2025, defendant Nationwide Premium Inc. ("Nationwide") entered into a written Loan and Security Agreement ("Agreement") with plaintiff, Auxilior Capital Partners, Inc. ("Plaintiff") for the purchase of a BOBCAT S590 Skid Steer Loader, Serial No. B4RF13744 (the "Collateral"). Plaintiff alleges that on July 27, 2025, Nationwide failed to make the first payment due under the Agreement and has continued to fail to make the payments due.

Plaintiff alleges that the unpaid principal balance now due, owing, and unpaid from Nationwide to Plaintiff is \$71,964.42, late charges of \$1,230.00, NSF fees in the sum of \$25.00, insurance fees in the sum of \$2,158.84, and other fees and costs accruing thereunder in a total amount to be determined at the time of trial, plus 18% default interest. The Complaint further alleges that defendant Hakob Sarkhosyan aka Hakob Sarkhoshyan ("Sarkhosyan") executed a Personal Guaranty in favor of Plaintiff and is thus indebted to Plaintiff for all sums due under the Agreement as described above.

ANALYSIS:

"California's Claim and Delivery Law (Code of Civ. Proc., §§ 511.010-516.050) authorizes the issuance of a pre-judgment writ of possession for specific personal property." (Sea Rail Truckloads, Inc. v. Pullman, Inc. (1982) 131 Cal.App.3d 511, 514.)

A plaintiff may apply for a writ of possession by filing a written application for the writ with the court in which the action is brought. (CCP, § 512.010 subd. (a).) "The application shall be executed under oath and shall include all of the following:

(1) A showing of the basis of the plaintiff's claim and that the plaintiff is entitled to possession of the property claimed. If the basis of the plaintiff's claim is a written instrument, a copy of the instrument shall be attached.

(2) A showing that the property is wrongfully detained by the defendant, of the manner in which the defendant came into possession of the property, and, according to the best knowledge, information, and belief of the plaintiff, of the reason for the detention.

(3) A particular description of the property and a statement of its value.

(4) A statement, according to the best knowledge, information, and belief of the plaintiff, of the location of the property and, if the property, or some part of it, is within a private place which may have to be entered to take possession, a showing that there is probable cause to believe that such property is located there.

(5) A statement that the property has not been taken for a tax, assessment, or fine, pursuant to a statute; or seized under an execution against the property of the plaintiff; or, if so seized, that it is by statute exempt from such seizure."

(CCP, § 512.010 subd. (b).)

The Application includes all the required information.

Basis of the Claim and Entitlement to Possession

As part of the terms of Agreement, Nationwide granted a security interest in the Collateral that Plaintiff agreed to finance. (Pyano Decl., ¶ 13.) Plaintiff recorded its security interest with the California Secretary of State which is reflected on the UCC Financing Statement. (Pyano Decl., ¶ 6, Ex. 2.) Pursuant to the terms of the Agreement, upon a default, Plaintiff is entitled to recover the Collateral. (Pyano Decl., ¶ 14.) Defendants have defaulted in payment on the Agreement. (Pyano Decl., ¶ 8, Ex. 3.) Plaintiff has made demand for payment and is entitled to return of the Collateral. (Pyano Decl., ¶¶ 17-18.) A copy of the written instrument is attached to the Application. (Pyano Decl., Ex. 1; CCP, § 512.010, subd. (a)(1).)

Showing that Property Has Been Wrongfully Detained and Manner of Possession

Plaintiff has shown that the Collateral has been wrongfully detained by Defendants, and the manner in which the Defendants came into possession of the property. (Pyano Decl., ¶¶ 7, 14-17.)

Description of the Property and Statement of Value

2025 BOBCAT S590 Skid Steer Loader, Serial No. B4RF13744. (Pyano Decl., ¶ 14.) Fair Market Value of \$40,000.00. (Pyano Decl., ¶¶ 14, 21.)

Location of the Property

33144 Canyon Quail Trail, Agua Dulce, CA 91390. (Pyano Decl., ¶ 16.)

Property Not Taken for a Tax, Assessment, Fine or Seizure

"The Collateral was not taken from Plaintiff for a tax, assessment, or fine, pursuant to statute, or seized under execution against Plaintiff." (Pyano Decl., ¶ 19; App. § 8.a.)

At the hearing for a writ of possession, the writ shall issue if both of the following are found: "(1) The plaintiff has established the probable validity of the plaintiff's claim to possession of the property; and (2) The undertaking requirements of Section 515.010 are satisfied." (CCP, § 512.060.) "A claim has 'probable validity' where it is more likely than not that the plaintiff will obtain a judgment against the defendant on that claim." (CCP, § 511.090.)

Here, as detailed above, the Application submits evidence from which the Court may find that the claim to possession is probably valid.

"If the court finds that the defendant has no interest in the property, the court shall waive the requirement of the plaintiff's undertaking and shall include in the order for issuance of the writ the amount of the defendant's undertaking sufficient to satisfy the requirements of subdivision (b) of Section 515.020." (CCP, § 515.010, subd. (b).) "The value of the defendant's interest in the property is determined by the market value of the property less the amount due and owing" on the subject contract. (CCP § 515.010 subd. (a).)

The market value of the Collateral is \$40,000.00. (Pyano Decl., ¶¶ 14, 21.) The amount owed is \$73,800.38, which exceeds the market value. (Pyano Decl., Ex. 3.) Accordingly, Defendants have no interest in the property, and no bond is required.

The Court will set a written undertaking required by Defendants for redelivery or to stay delivery in the amount of \$10,000.

RULING:

Plaintiff, Auxilior Capital Partners, Inc.'s Application for Writ of Possession [Res Id # 4301] is GRANTED.

Plaintiff, Auxilior Capital Partners, Inc.'s Application for Writ of Possession [Res Id # 1391] is GRANTED.

No bond required for issuance of the writ inasmuch as Defendants have no interest in the subject property. (CCP § 515.010.) Pursuant to CCP sections 515.020 and 515.010 subdivision (b), the Court sets the amount of Defendants' undertaking at \$10,000.

Counsel for moving party is ordered to prepare an order for writ of possession and submit it on eCourt by noon today in accordance with this ruling.

DEPARTMENT D IS CONTINUING TO CONDUCT AND ENCOURAGE

VIDEO APPEARANCES

If you wish to appear remotely on LACourtConnect, you may register by visiting www.lacourt.ca.gov to schedule a remote appearance. Please note that LACourtConnect offers free audio and video appearances. Department D is now requiring either live or VIDEO appearances, not audio appearances.